

Court No. - 3

Case :- WRIT - C No. - 3526 of 2024

Petitioner :- Ram Suhawan

Respondent :- State Of U.P.Thru. Prin. Secy.
Energy Deptt. Civil Sectr. Lko. And 6 Others

Counsel for Petitioner :- Diwakar Pratap Pandey

Counsel for Respondent :- C.S.C., Neera Yadav

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Brij Raj Singh,J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing on behalf of the State Respondents and Ms. Neera Yadav, learned counsel appearing on behalf of the respondent nos.2, 3 & 4.

This petition has been filed with the following main prayer:-

"To issue a writ order or direction in the nature of certiorari to quash the impugned recovery proceedings initiated for realization of an amount of Rs.623744/- as arrears of electricity dues, through recovery citation dated 15/03/2024 under Rule 141(3) of the Uttar Pradesh Revenue Code 2006 as well as a demand notice bearing notice no.3886 through which they imposed the penalty for Rs.623744.00/- (Rupees Six Lac Twenty Three Thousand Seven Hundred Forty Four) contained in Annexure No.1 and 4 respectively to this writ petition."

It is the case of the petitioner that he runs a Flour Mill (*Atta Chakki*) and he had given money to the Junior Engineer and the Lineman of Vidyut Vitran Khand Kaiserganj, M.V.V.N.L., Bahraich, in September, 2023 while applying for commercial electricity connection for the said mill. However, no meter was installed but the line was activated and on inspection being carried out, the respondents have alleged electricity theft against the petitioner and issued a Recovery Certificate, on the basis of which Recovery Citation of Rs.6,23,744/- has been issued which has been impugned in this petition. The petitioner has already filed a complaint under Section 156(3) of the Cr.P.C. on 24.01.2024 before the Chief Judicial Magistrate Bahraich registered as Case

No.177/2024: *Ram Suhawan Vs. Jai Narayn Prakash Maurya*, against the Junior Engineer and the Lineman, where the Chief Judicial Magistrate has called for instructions from the Police Station concerned and has listed the case thereafter. The petitioner's attempt to lodge the F.I.R. has also not fructified and Recovery Citation has been issued.

It is apparent that the electricity dues are being demanded from the petitioner.

This Court cannot enter into the disputed question of facts where some private respondents have taken money from the petitioner and not installed the electricity meter. It is for the petitioner to approach the Executive Engineer/ Prescribed Authority- respondent no.3 by way of an application under paragraph 6.5 of the Electricity Supply Code, 2005.

The writ petition is accordingly ***disposed of***.

Order Date :- 19.4.2024

Rahul